Important Update

2026-09-14 00:00:00

On September 14, 2026, the U.S. District Court for the District of Massachusetts issued an order pausing the effective date of the Department of Homeland Security's Duration of Status Final Rule while litigation concerning the rule continues.

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Sept. 14, 2026: *On Sept. 14, 2026, the U.S. District Court for the District of Massachusetts issued an order postponing the effective date of the Department of Homeland Security's Duration of Status Final Rule while litigation concerning the rule continues. Presidents' Alliance v. DHS, No. 1:26-cv-13799-FDS. As a result, the Final Rule will not take effect on Sept. 15, 2026. The existing Duration of Status framework for F-1 and J-1 students and J-1 scholars remains in effect. The fixed admission periods, extension-of-stay procedures and related changes described on the OIS Duration of Status Rule Change webpage are not currently operative. OIS will continue to monitor developments. While litigation continues, please contact an OIS advisor before making significant travel or immigration decisions.*

Sept. 1, 2026: *Note regarding the status of this rule: This page is based on the July 17, 2026 Department of Homeland Security (DHS) final rule, "Establishing a Fixed Time Period of Admission and an Extension of Stay Procedure for Nonimmigrant Academic Students, Exchange Visitors, and Representatives of Foreign Information Media," and includes guidance tailored to USC F-1/J-1 students and J-1 scholars. The DHS final rule described on this page is scheduled to take effect on September 15, 2026. It is the subject of pending litigation in the U.S. District Court for the District of Massachusetts, where plaintiffs have asked the court to block the rule before that date. No court order has issued. Unless and until one does, September 15, 2026 remains the operative effective date and the deadlines described below apply.*

The USC Office of International Services (OIS) i… when there is a ruling. Check the date above before relying … re making travel or filing decisions.

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Overview

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We recognize immigration changes can create concern and uncertainty. Please know that USC remains committed to supporting our international students and scholars as we navigate this transition together. In addition to the guidance provided by the Office of International Services (OIS), students and scholars are encouraged to explore USC's broader campus support resources, including immigration, legal, wellness and student assistance available through the USC Campus Resources page.

Join us for an informative webinar on the DHS Final Rule. This session will provide a high-level overview of the rule, help participants better understand the key changes, and offer practical guidance to support the university community.

These FAQs summarize the DHS final rule and are intended for general informational purposes. Individual circumstances vary, and guidance may continue to evolve as the final rule is implemented.

Frequently Asked Questions

Current and Incoming Fall 2026 t You Need to Know Now

The final rule contains transition provisions t students and J-1 scholars admitted for Duration of Sta edures. This section provides information about how you o take, and nternational travel after September 15 it Until Date (AUD).

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I am currently abroad for summer break in 2026. When should I return to the U.S. to resume my academic program or academic appointment for Fall 2026 at USC?

I have been approved to study abroad or do research abroad in Fall 2026. How will this impact me?

Understanding the Final Rule

The DHS's final rule changes how F-1/J-1 students and J-1 scholars maintain and extend status in the U.S. This section provides an overview of the rule, including key changes, timelines and who is impacted.

Elimination of Duration of Status (D/S) for F-1/J-1 Students and J-1 Scholars

Departure Period for F-1/J-1 Students and J-1 Scholars

Academic Mobility Changes for F-1 Studen

Admit Until Date (AUD)

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Extension of Stay (EOS)

Under the final rule, some F-1/J-1 students and J-1 scholars may need to request an Extension of Stay (EOS) from USCIS to remain in the U.S. beyond their Admit Until Date (AUD). This section covers the difference between EOS and program extension, EOS eligibility requirements and how to apply for EOS.

What is an Extension of Stay (EOS)?

Who will process the Extension of Stay (EOS) application?

Do I need to consult with OIS before applying for an Extension of Stay (EOS)?

Is an Extension of Stay (EOS) the same as a

Am I automatically eligible for a program e

How do I apply for an Extension of Stay (EO

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I will not be able to complete my degree requirements or academic appointment by my original Program End Date printed on my Form I-20 or DS-2019. Do I need to apply for an Extension of Stay (EOS)?

Do I need to apply for an Extension of Stay (EOS) if I need additional time to engage in Post-Completion Optional Practical Training (OPT), STEM OPT Extension (STEM OPT) or Academic Training (AT)? What steps do I need to take?

Do I need to apply for an Extension of Stay (EOS) if I want to pursue a degree at a new education level after completing my previous program of study? What steps do I need to take?

What happens after I apply for an Extension of Stay (EOS)?

Can I continue working with a pending Extension of Stay (EOS)?

Can I travel with a pending Extension of St

Can I receive a new Admit Until Date (AUD)

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Do I need to file an Extension of Stay (EOS) (Form I-539) with my Post-Completion Optional Practical Training (OPT) application if I am part of the transition group?

What happens to my period of admission if my Post-Completion Optional Practical Training (OPT) application is approved?

What is the deadline to be included in this transition period?

I plan to apply for Post-Completion Optional Practical Training (OPT) as a summer 2026 graduate. How does the final rule impact my OPT application?

I plan to apply for Post-Completion Optional Practical Training (OPT) as a fall 2026 graduate. How does the final rule impact my OPT application?

As a spring 2027 graduate, I plan to apply f g (OPT) before March 18, 2027. How does th

As a spring 2027 graduate, I plan to apply f g (OPT) after March 18, 2027. How does the f

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Academic Mobility Changes for F-1 Students

In addition to changing how F-1 students are admitted to the U.S., the final rule also modifies several aspects of maintaining F-1 status. This section provides guidance on new requirements for enrolling in a new program of study and transferring institutions. DHS has indicated that implementation may be delayed; OIS will provide more information once the effective date is confirmed.

Can I change my educational level while I am studying in the U.S.?

Once I complete my current program of study, can I enroll in a new program at a different educational level?

Can I change my major while I am studying in the U.S.?

Can I transfer while I am studying in the U.

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Webinars

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- Tuesday, Sept. 8, 3 p.m.
- Thursday, Sept. 10, 3 p.m.

Join Webinars Here

OPT Webinar for Summer 2026 Graduates:

- Thursday, Sept. 10, 3 p.m.

Join Webinars Here

For J-1 Sponsoring Departments:

- Tuesday, Aug. 18, 1 p.m.

Zoom link will be provided upon regist

For J-1 exchange visitors (includes c olars and professors):

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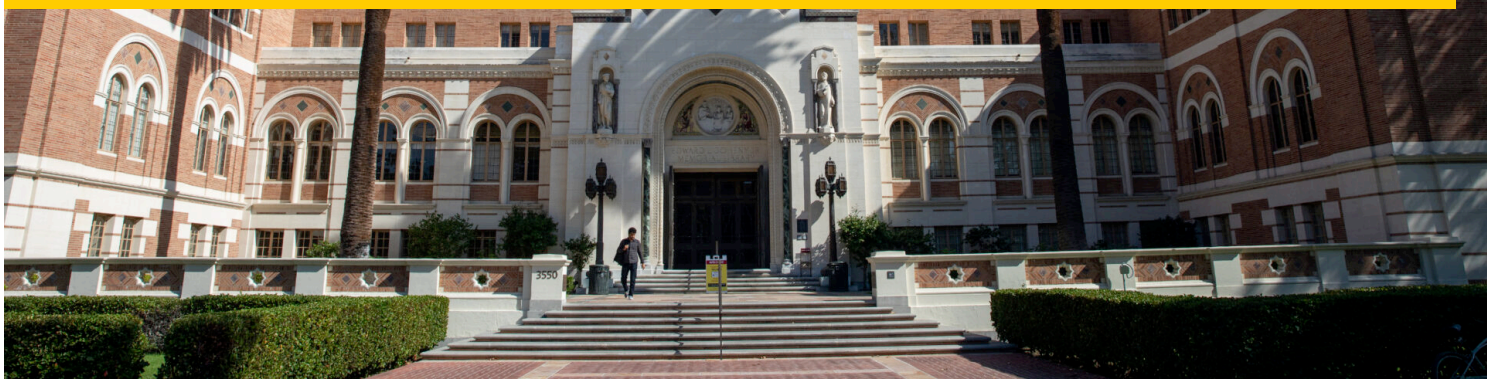
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